



Sea Fish Industry Act 1973

1973 CHAPTER 3

An Act to relax certain time limits under the Sea Fish Industry Act 1970 with respect to grants and loans under the Act and with respect to the White Fish Marketing Fund and the Herring Marketing Fund.

[13th February 1973]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Extension of
time limits.
1970 c. 11.

1.—(1) In section 49 of the Sea Fish Industry Act 1970 (which enables grants to be made in accordance with schemes under the section to owners or charterers of fishing vessels or vessels handling the catch, but by subsection (4) requires an application for a grant to have been made before 1st January 1974), subsection (4) is hereby repealed; and the operation of section 51 of that Act (reimbursement of Isle of Man herring subsidies) shall be extended accordingly.

(2) The following provisions of the Sea Fish Industry Act 1970, that is to say,—

(a) sections 22(1) and 35(1) (Exchequer loans to White Fish Authority or Herring Industry Board), and sections 24(2) and 37(2) (payment into White Fish Marketing Fund or Herring Marketing Fund of principal repaid on certain Exchequer loans); and

(b) sections 23(1) and 36(1) (Exchequer grants to Authority or Board);

shall have effect as if in each of those provisions any reference to the end of the year 1972 were a reference to the end of the year

1973 or any later date that may be prescribed for that provision by order of the Ministers.

(3) An order made under subsection (2) above shall be contained in a statutory instrument made before the end of the year 1973 or, as the case may be, before the date or last date prescribed by a previous order so made for the provision in question; but an order made under that subsection shall be of no effect unless it is approved by a resolution of the Commons House of Parliament.

(4) In section 24(6) and in section 37(6) of the Sea Fish Industry Act 1970 (which require the White Fish Marketing Fund and the Herring Marketing Fund to be wound up as soon as may be after the end of the year 1972) for the reference to the end of the year 1972 there shall be substituted a reference to the date up to which payments may under the section continue to be made into the Fund there mentioned.

(5) Sections 28, 43 and 58(2) of the Sea Fish Industry Act 1970 (which make provision as to the operation of that Act in relation to Northern Ireland) shall have effect as if any reference therein to Part I or to Part II of the Act included subsections (2), (3) and (4) above in so far as they affect that Part; and, subject to section 58(2) of that Act, "the Ministers" in subsection (2) above means the Minister of Agriculture, Fisheries and Food, the Secretary of State concerned with the sea fishing industry in Scotland and the Secretary of State concerned with the sea fishing industry in Northern Ireland.

2.—(1) This Act may be cited as the Sea Fish Industry Act Citation and 1973, and the Sea Fish Industry Act 1970 and this Act may be extent. cited together as the Sea Fish Industry Acts 1970 and 1973.

(2) It is hereby declared that this Act, except as it affects section 51 of the Sea Fish Industry Act 1970, extends to Northern Ireland, but subject to the provision made by section 1(5) above.